



CHAPTER xi.

An Act to extend the time for the completion of the authorised pier and works of the Weston-super-Mare Grand Pier Company and for other purposes. A.D. 1904.

[24th June 1904.]

WHEREAS by the Weston-super-Mare Grand Pier Act 1893 (hereinafter called "the Act of 1893") the Weston-super-Mare Grand Pier Company (hereinafter called "the Company") were incorporated with power to make the pier and works in that Act mentioned :

And whereas by the Weston-super-Mare Grand Pier Act 1897 (hereinafter called "the Act of 1897") and the Weston-super-Mare Grand Pier Act 1899 (hereinafter called "the Act of 1899") the powers conferred upon the Company by the Act of 1893 with respect to the construction of the pier and works were extended and enlarged :

And whereas it is expedient that the time limited by the Act of 1893 as extended by the Act of 1897 and the Act of 1899 for the completion of the pier and works authorised by the first-named Act should be further extended :

And whereas it is expedient that certain provisions contained in section 51 of the Act of 1893 should be repealed and that section 5 of the Act of 1897 and section 4 of the Act of 1899 should be amended as by this Act provided :

And whereas the objects aforesaid cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal

A.D. 1904. — and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title. **1.** This Act may be cited as the Weston-super-Mare Grand Pier Act 1904.

Incorporation of part of Act. **2.** The provisions of Part II. (Extension of time) of the Railways Clauses Act 1863 are incorporated with and form part of this Act and in construing the said provisions of the Railways Clauses Act 1863 for the purposes of this Act the pier and works authorised by the Act of 1893 and this Act shall be deemed to be a railway and the Company shall be deemed a railway company.

Extension of time for completion of works. **3.** The time limited by the Act of 1893 as extended by the Act of 1897 and the Act of 1899 for the completion of the pier and works authorised by the Act of 1893 is hereby extended for a period of three years from the twelfth day of May one thousand nine hundred and four and if the pier and works are not completed within such extended period then on the expiration thereof the powers by the Act of 1893 the Act of 1897 the Act of 1899 and this Act granted for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

Repeal of certain provisions of Act of 1893 and amendment of Acts of 1897 and 1899. **4.** Subsection (1) of section 51 of the Act of 1893 is hereby repealed and subsection (1) of section 5 of the Act of 1897 shall be read and have effect as if the words “(other than a band “ stand and such number of ornamental shelters to be used solely “ as such as the Council shall agree to and to be constructed “ according to such designs and of such height and materials “ as the Council shall approve)” were inserted after the word “ erections” and before the word “ within” and subsection (2) of section 5 of the Act of 1897 and so much of section 4 of the Act of 1899 as refers to that subsection shall be read and have effect as if the words “twelfth day of March one thousand nine hundred and four” had been inserted in subsection (2) of section 5 of the Act of 1897 and in section 4 of the Act of 1899 instead of the words “passing of this Act” and “twelfth day of May one thousand nine hundred and one” respectively.

For protection of Urban District Council of Weston-super-Mare. **5.** For the protection of the Urban District Council of Weston-super-Mare (hereinafter called “the Council”) the following provision shall unless otherwise agreed between the Council and the Company apply and have effect (that is to say):—

No buildings or erections of any kind whatsoever shall without the written consent of the Council first had and

obtained be erected or placed upon any portion of the esplanade (formerly termed the Royal Parade and now called the Marine Parade) numbered 1 on the plans deposited in respect of the Act of 1893 at a greater distance than 6 feet from the western extremity of the boundary wall of the esplanade that is to say the point of commencement of the approach to the pier. A.D. 1904.

6. Nothing in this Act contained shall exempt the Company or the pier and works by the Act of 1893 authorised from the provisions of any present or future general Act relating to harbours docks or piers. Provision as to general Acts relating to piers &c.

7. The costs charges and expenses of and incident to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act

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